

**IN THE HIGH COURT OF PUNJAB AND HARYANA AT CHANDIGARH**

CRM-M-33684-2026

Date of decision: 12.06.2026

Captain Singh and another**...Petitioners**

Versus

State of Punjab

...Respondent**CORAM: HON'BLE MR. JUSTICE DEEPAK GUPTA**

Present: Mr. L.M. Gulati, Advocate (Through VC)
for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of the present petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioners seek the concession of anticipatory bail in case FIR No.104 dated 21.05.2026 registered under Sections 115(2), 118, 118(2), 191(3) and 190 of the Bharatiya Nyaya Sanhita, 2023 at Police Station Chatiwind, District Amritsar.

2. Learned counsel for the petitioners submits that the petitioners have been falsely implicated in the present case. It is contended that there is an unexplained delay of about eight days in lodging the FIR. Learned counsel further submits that one Gurjant Singh, belonging to the accused party, had also sustained injuries in the occurrence, which circumstance has not been properly explained by the prosecution. It is argued that no injury has been attributed to petitioner No.1-Captain Singh, who is alleged only to have



raised a lalkara, whereas petitioner No.2-Amrik Singh is stated to be empty-handed and no overt act has been attributed to him except that he allegedly caught hold of the complainant. It is further submitted that the petitioners are ready and willing to join the investigation and cooperate with the investigating agency. On the strength of these submissions, prayer has been made for grant of anticipatory bail.

3. Opposing the petition, learned State counsel submits that the petitioners have been specifically named in the FIR and assigned active roles in the occurrence. It is argued that the allegations disclose a premeditated attack upon the complainant by a group of assailants armed with deadly weapons, resulting in grievous injuries including amputation of two fingers of the complainant's left hand. Learned State counsel contends that the offence was allegedly committed to intimidate and retaliate against the complainant for having instituted and pursued an earlier criminal case against the accused persons. Considering the nature of allegations, the gravity of injuries and the specific participation attributed to the petitioners, it is submitted that

4. I have heard learned counsel for the petitioners and perused the paper-book.

5. A perusal of the FIR reveals that the petitioners have been specifically named and assigned distinct roles in the occurrence. As per the allegations, petitioner No.1-Captain Singh was armed with a dang and raised a lalkara exhorting the other accused to teach a lesson to the complainant



for having deposed against them in an earlier criminal case. Petitioner No.2- Amrik Singh, though stated to be empty-handed, is specifically alleged to have, along with co-accused Balwinder Singh, caught hold of the complainant, forcibly pulled him out of the vehicle and thereby facilitated the assault by the remaining assailants.

6. The submission that petitioner No.1 merely raised a lalkara and that petitioner No.2 did not inflict any injury does not persuade this Court to extend the extraordinary concession of anticipatory bail. At the stage of consideration of pre-arrest bail, the Court is not expected to meticulously evaluate the evidence or examine the exact extent of participation of each accused. The allegations are required to be seen as a whole. The FIR prima facie discloses that the accused persons had acted in concert and formed an unlawful assembly with a common object to attack the complainant. The role attributed to petitioner No.2 in restraining the complainant and facilitating the attack is not insignificant. Likewise, the exhortation allegedly given by petitioner No.1 immediately preceding the assault constitutes an active participation in the commission of the offence.

7. The nature and gravity of the allegations also weigh against the petitioners. The complainant is stated to have suffered grievous injuries, including amputation of the little and ring fingers of his left hand on account of a kirpan blow. The occurrence is alleged to have been motivated by a desire to intimidate and retaliate against the complainant for having



instituted and pursued an earlier criminal case against the accused persons and for deposing therein. Such allegations, if true, strike at the administration of criminal justice and cannot be viewed lightly.

8. The contention regarding delay in lodging the FIR and the injuries allegedly sustained by one of the members of the accused party are matters which constitute part of the defence of the petitioners and would be examined during investigation and, if necessary, at trial. At this stage, these circumstances are not sufficient to dilute the specific and direct allegations levelled against the petitioners, particularly when the occurrence involves a brutal assault resulting in serious bodily injuries.

9. Having regard to the specific roles attributed to the petitioners, the seriousness of the allegations, the nature of injuries suffered by the complainant, and the apparent motive behind the occurrence, this Court is of the considered view that the petitioners do not deserve the discretionary relief of anticipatory bail. No exceptional circumstance has been shown warranting exercise of jurisdiction under Section 482 of the BNSS for grant of pre-arrest protection.

10. Consequently, finding no merit in the present petition, the same is hereby dismissed.

12.06.2026

Yogesh

**(DEEPAK GUPTA)
JUDGE**

Whether speaking/reasoned:- Yes/No
Whether reportable:- Yes/No